

26STCV01320 26STCV01320

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C08%2F12%2F2026

Source SHA-256: 3e523892dc21ea9c7effeb96ad02356d10367ae7a40213fcd544df2b85edf56

Case Number: 26STCV01320 Hearing Date: August 12, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

REINA SAAVEDRA,

Plaintiff,

vs.

INTERLANG LLC DBA

MONTGOMERY DME,

Defendant.

Case No.:

26STCV01320

Hearing Date:

August 12, 2026

Hearing Time: 8:30 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT

INTERLANG LLC DBA MONTGOMERY DME'S DEMURRER TO PLAINTIFF REINA SAAVEDRA'S
FIRST AMENDED COMPLAINT;

DEFENDANT

INTERLANG LLC DBA MONTGOMERY DME'S MOTION TO STRIKE PORTIONS OF PLAINTIFF
REINA SAAVEDRA'S FIRST AMENDED COMPLAINT

Background

Plaintiff Reina Saavedra ("Plaintiff")

filed the instant action on January 14, 2026 against Defendant Interlang LLC
dba Montgomery DME ("MDME"), alleging seven causes of action. On April 14, 2026,
Plaintiff filed a first amended complaint ("FAC"), alleging four out of five causes
of action under the Fair Employment and Housing Act ("FEHA") for (1) discrimination,
(2) retaliation, (3) failure to investigate and prevent and (4) wrongful
termination, plus (5) wrongful termination in violation of public policy.

MDME now demurs to the FAC

in its entirety and moves to strike portions of the FAC alleging punitive and
exemplary damages. Plaintiff opposes. MDME replied.

Legal

Standard

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.)

In testing the sufficiency of the complaint, the court assumes the truth of
properly pleaded factual allegations, facts reasonably inferred from those
expressly pleaded, and judicially noticed matters. ((Blank

v. Kirwan (1985) 39 Cal.3d 311, 318.) "A demurrer tests the pleadings
alone and not the evidence or other extrinsic matters. Therefore, it lies only
where the defects appear on the face of the pleading or are judicially
noticed." (SKF Farms v. Superior Court, (1984)

153 Cal.App.3d 902, 905.) Accordingly, "[w]hether the plaintiff will be
able to prove the pleaded facts is irrelevant to ruling upon the
demurrer." (Stevens v. Superior Court
(1986) 180 Cal.App.3d 605, 609-10.)

Under Code of Civil Procedure section 430.10 subdivisions (e) and (f), a demurrer may be filed if the pleading is uncertain or does not state facts sufficient to constitute a cause of action. For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment, otherwise, it is abuse of discretion. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)

Discussion

A. Allegations of the FAC

Plaintiff's

FAC pleads, *inter alia*, that she "began her employment with Defendant in or around 2016, and performed her job duties in an exemplary fashion throughout her employment." (FAC, ¶ 7.) Plaintiff alleges that in "2020, Plaintiff was promoted to the position of Sales and Marketing Executive." (FAC, ¶ 8.) Then, "[o]n or about November 7, 2022, Plaintiff gave birth and took prescheduled maternity leave. In or around March 2023, Plaintiff returned to work from her maternity leave," but "[u]pon her return, Defendant demoted Plaintiff from her position as Sales and Marketing Executive to Account Manager, which resulted in a reduced salary." (FAC, ¶¶ 9-10.) "In or around March 2024, Defendant promoted Plaintiff to the position of Business Development Specialist." (FAC, ¶ 11.)

Plaintiff

pleads that in April 2025, she discovered she was pregnant again, but "[b]ased on her prior experience of being demoted upon returning from maternity leave in 2023, Plaintiff did not immediately inform Defendant." (FAC, ¶¶ 12-13.) "[A]round June through July 2025, Plaintiff disclosed to Defendant that she was pregnant. Around this time, Plaintiff observed that her supervisor's behavior towards her changed, becoming unavailable to meet with Plaintiff, and repeatedly canceling meetings." (FAC, ¶ 14.) Then, on "September 2, 2025, when Plaintiff was approximately 6.5 months pregnant, Plaintiff was terminated." (FAC, ¶ 15.) "Plaintiff is informed and believes and thereupon alleges, that Defendants terminated her

employment because of disability/perceived disability, gender/sex, request for accommodations, and medical leave.” (FAC, ¶ 16.)

B.

First Cause of Action for Discrimination

“It is an unlawful

employment practice...(a) [f]or an employer, because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, reproductive health decisionmaking, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or veteran or military status of any person, to refuse to hire or employ the person or to refuse to select the person for a training program leading to employment, or to bar or to discharge the person from employment or from a training program leading to employment, or to discriminate against the person in compensation or in terms, conditions, or privileges of employment.” (Gov. Code (, subd. (a ?YEAR?) § 12940.)

California applies

the burden-shifting formula set forth in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792, 802, under which a plaintiff must first establish a *prima facie* case of discrimination by showing that: (1) he or she was a member of a protected class, (2) that he or she was qualified for and performing competently in the position she held, (3) he or she suffered an adverse employment action, and (4) conduct by the employer suggesting that it is more likely than not that the adverse employment action was due to a discriminatory motive. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.)

MDME

contends that “Plaintiff has failed to allege sufficient facts to demonstrate that Defendant has discriminated against her on the basis of her purported pregnancy disability. Plaintiff merely pleads that ‘Defendants engaged in unlawful employment practices in violation of the FEHA by discriminating against Plaintiff on account of her disability/perceived disability/sex/gender.’ (FAC, ¶21.) As such, bare conclusionary assertions, that are unsupported by specific factual allegations, are insufficient to state a cognizable claim for discrimination.” (Dem., 10:23-11:1.) MDME further contends that “Plaintiff fails to plead the

elements necessary to establish a cause of action for discrimination. Plaintiff does not allege any facts showing that she was qualified to perform her job duties nor that Defendant took any adverse actions against her because of her pregnancy disability. The FAC does not identify any specific adverse action connected to her pregnancy, nor does the FAC allege any facts to establish a causal nexus between her pregnancy and any purported adverse acts by Defendant that caused her alleged harm.” (Dem., 11:2-7.)

MDME

cites *Arteaga v. Brink's, Inc.* (2008) 163

Cal.App.4th 327, 353 (*Arteaga*), where the court stated that “[b]ecause the employee’s burden of establishing a prima facie case under *McDonnell Douglas* is fairly minimal, the temporal proximity between an employee’s disclosure of his symptoms and a subsequent termination may satisfy the causation requirement at the first step of the burden-shifting process.”

In the context of a motion for summary judgement, the court explained that “temporal proximity alone is not sufficient to raise a triable issue as to pretext once the employer has offered evidence of a legitimate, nondiscriminatory reason for the termination.” (*Ibid.*) The court also

clarified that “[t]o be persuasive evidence, temporal proximity must be very close, and importantly ... temporal proximity alone, when very close, can in some instances establish a prima facie case of [discrimination or] retaliation.... But we affirmatively reject the notion that temporal proximity standing alone can be sufficient proof of [pretext]. Such a rule would unnecessarily tie the hands of employers.” (*Id.*

at p. 354.) MDME contends that “Plaintiff alleges no facts or conclusionary inferences beyond the temporal proximity of her pregnancy and termination, to establish her discrimination cause of action. Additionally, Plaintiff does not allege facts showing that her pregnancy disability was a motivating reason for Defendant to terminate her employment.” (Dem., 11:14-18.)

Plaintiff

asserts MDME’s use of *Arteaga* “is misplaced” because that case “was a summary judgment case addressing whether evidence of timing, after discovery and an evidentiary record, was sufficient to establish pretext. It does not impose a heightened pleading standing [sic] requiring Plaintiff to prove discriminatory motive in the complaint. Nor is this a case involving timing alone. The FAC alleges a pattern: adverse action after prior maternity leave, fear of recurrence, disclosure of a new pregnancy, changed supervisor behavior after disclosure, and termination during late pregnancy.” (Opp., 8:22-28.)

Plaintiff

first contends that the FAC pleads protected status: “Plaintiff was pregnant in 2022 and after returning from maternity leave in early 2023, was demoted. Plaintiff was again pregnant in 2025, disclosed her pregnancy to Defendant around June through July 2025, and was approximately 6.5 months pregnant when Defendant terminated her. (FAC, ¶¶ 12, 14-16.) The FAC pleads that Plaintiff was qualified and performing satisfactorily: she worked for Defendant since approximately 2016, performed her duties in an exemplary fashion, and was promoted multiple times, including to Sales and Marketing Executive and later to Business Development Specialist. (FAC, ¶¶ 7-8, 11.)” (Opp., 8:3-9.)

Plaintiff

next asserts she “pleads adverse actions: Defendant demoted Plaintiff after her prior maternity leave and reduced her salary, and then terminated her during her subsequent pregnancy. (FAC, ¶¶ 10, 15.)” (Opp., 8:10-12.)

Lastly,

Plaintiff contends she pleads a reasonable causal nexus, because she “alleges that, after she gave birth and returned from maternity leave in March 2023, Defendant demoted her and reduced her salary. (FAC, ¶¶ 9-10.) Plaintiff alleges that, because of that prior adverse treatment, she delayed disclosing her 2025 pregnancy. (FAC, ¶ 13.) After she disclosed the pregnancy in June through July 2025, her supervisor’s behavior changed, including becoming unavailable and repeatedly canceling meetings. (FAC, ¶ 14.) Weeks later, Defendant terminated her while she was approximately 6.5 months pregnant. (FAC, ¶ 15.) These allegations support a reasonable inference that Plaintiff’s pregnancy, anticipated medical leave, and related protected status were at least a substantial motivating reason for the termination.” (Opp., 8:13-21.)

MDME’s

reply asserts that it “does not cite *Arteaga* to impose a heightened pleading standard or apply a summary judgment analysis. Rather, it illustrates the common-sense principle that temporal sequence, without supporting factual allegations, does not plausibly establish causation. Here, the Amended Complaint contains nothing more than Plaintiff’s own assumption that because she was pregnant while terminated, Defendant must have purportedly acted with a discriminatory intent.” (Reply, 4:27-5:4.) MDME contends that “[u]ltimately, even reading the Amended Complaint as a whole and accepting all pleaded facts as true, there are clearly missing factual allegations demonstrating that

Defendant acted because of Plaintiff's pregnancy. Because the Amended Complaint continues to rely on conclusory allegations and unsupported inferences, Plaintiff has failed to state a viable cause of action for discrimination under the FEHA." (Reply, 5:5-9.)

The

Court recognizes that the Arteaga court's decision was in the context of analyzing a motion for summary judgment. Nonetheless, the Arteaga case is instructive. As noted above, the Arteaga court also did not foreclose temporal proximity to demonstrate a prima facie case of discrimination. However, to demonstrate temporal proximity, the adverse employment action must be sufficiently close in time to the protected activity. Plaintiff alleges she was terminated around two months after disclosing her protected status. However, beyond this, Plaintiff does not allege facts showing that her pregnancy was the motivating reason for MDME to terminate her employment. Additionally, Plaintiff does not allege ultimate facts that it is more likely than not that the adverse employment action was due to a discriminatory motive. Specifically, under the first cause of action, Plaintiff alleges legal conclusions, rather than ultimate facts. For example, Plaintiff alleges that "Defendants engaged in unlawful employment practices in violation of the FEHA by discriminating against Plaintiff on account of her disability/perceived disability/sex/gender." (FAC, ¶ 21.) Accordingly, the demurrer to the first cause of action is sustained with leave to amend.

C.

Second Cause of Action for Failure to Investigate and Prevent

Government Code (, subdivision (k ?YEAR?) section 12940, prohibits an employer from failing "to take all reasonable steps necessary to prevent discrimination and harassment from occurring."¿"An employer who knows or should have known of unlawful harassment and retaliation, and fails to take immediate and appropriate corrective action, may be liable for the resulting damages... However, because the statute does not create a stand-alone tort, the employee has no cause of action for a failure to investigate unlawful harassment or retaliation, unless actionable misconduct occurred." (Thompson v. City of Monrovia (2010) 186 Cal.App.4th 860, 880.)

MDME asserts that "Plaintiff fails to allege facts to demonstrate that Defendant failed to investigate and

prevent the alleged discrimination and harassment that Plaintiff encountered during her employment. Plaintiff merely pleads that ‘Defendants failed to take immediate and appropriate corrective action to end the discrimination and harassment. Defendants also failed to take all reasonable steps necessary to prevent discrimination and harassment from occurring. (FAC, ¶28.) Plaintiff recites the elements of failure to investigate and prevent without pleading any supporting factual basis.” (Dem., 12:4-10.) Additionally, MDME asserts that “Plaintiff fails to allege any facts indicating that Defendant was aware or had knowledge of the discrimination or harassment she encountered during her employment, such that would necessitate Defendant to investigate or take preventive action.” (Dem., 12:13-16.)

Plaintiff’s

opposition contends that “Defendant argues Plaintiff must plead additional facts showing precisely what internal investigation should have occurred, who knew what, when each complaint was made, and how Defendant responded. That argument asks Plaintiff to plead evidence and internal facts disproportionately within Defendant’s control.” (Opp., 9:24-27.)

The

Court finds that Plaintiff did not plead facts sufficient to support a cause of action for failure to investigate and prevent in violation of FEHA. As MDME points out, Plaintiff’s FAC pleads legal conclusions, not ultimate facts.

Without ultimate facts demonstrating that MDME failed to take steps to prevent Plaintiff’s discrimination and retaliation, the cause of action cannot stand.

Accordingly, the demurrer to the second cause of action is sustained, with leave to amend.

D.

Third Cause of Action for Retaliation

“To establish a

prima facie case of retaliation, a plaintiff must show that she engaged in protected activity, that she was thereafter subjected to adverse employment

action by her employer, and there was a causal link between the two.” (Morgan v. Regents of University of California (2000) 88 Cal.App.4th 52, 69,

internal quotations omitted.) “The retaliatory motive is proved by showing that plaintiff engaged in protected activities, that his employer was aware of the protected activities, and that the adverse action followed within a relatively short time thereafter. [Citation.] The causal link may be established by an

inference derived from circumstantial evidence, such as the employer's knowledge that the [employee] engaged in protected activities and the proximity in time between the protected action and allegedly retaliatory employment decision." (Id. at pp. 69-70, internal quotations omitted.)

As for the third cause of action,

MDME asserts that "Plaintiff alleges in a conclusory manner that she engaged in protected activity by requesting accommodation and medical leave. However, Plaintiff fails to provide sufficient supporting facts regarding the nature of the alleged protected activity. Plaintiff does not plead facts identifying the accommodations or medical leave she allegedly requested, the medical condition giving rise to such requests, or whether the alleged requests and medical leave was related to her pregnancy. Plaintiff further fails to allege when the requests were made, to whom the requests were directed to, the manner in which the requests were communicated, or how Defendant responded to such requests." (Dem., 13:5-12.)

Plaintiff's opposition contends that

"[t]he FAC alleges protected activity: Plaintiff requested accommodation/medical leave and took medical leave. (FAC, ¶ 36.) It also alleges employer knowledge: Plaintiff disclosed her pregnancy in June through July 2025, and her supervisor's conduct changed around that time. (FAC, ¶ 14.) It alleges adverse action: Defendant demoted her upon her return from maternity leave in 2023 and Defendant terminated her on September 2, 2025 while she was 6.5 months pregnant with her second child. (FAC, ¶¶ 9-10, 15, 37.) It alleges causation: Defendant terminated her because of her disabilities/perceived disabilities, requests for accommodations, complaints regarding the same, and medical leave. (FAC, ¶¶ 35-38.) These allegations, read together with the prior demotion after maternity leave and the changed supervisor behavior after pregnancy disclosure, plead far more than a bare legal conclusion. Defendant's demand for the precise accommodation requested, exact words used, the recipient of each request, and Defendant's response imposes an evidentiary specificity requirement that California pleading law does not require." (Opp., 10:21-11:5.)

In Plaintiff's FAC, she pleads, inter alia, that "[t]he conduct alleged above constituted unlawful retaliation against Plaintiff on account of her disabilities and requests for accommodations and complaints of the same," and "Plaintiff engaged in protected

activity by making complaints regarding requesting accommodations and medical leave and taking medical leave.” (FAC, ¶¶ 35-36.)

The Court finds that Plaintiff’s pleading is insufficient to overcome demurrer. Plaintiff’s FAC generally alleges that she made requests for accommodations. Plaintiff does not plead specific facts demonstrating what requests she made. Although Plaintiff’s complaint does not need to be pled with strict specificity, she cannot plead conclusory facts. Plaintiff’s FAC lacks specific allegations regarding the type of medical leave and accommodations requested, as well as who she requested the accommodations from. Accordingly, the demurrer to the third cause of action for retaliation is sustained, with leave to amend.

E.

Fourth

Cause of Action for Wrongful Termination Under FEHA

Under Government Code section 12940, subdivision (a), it is unlawful “[f]or an employer, because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, reproductive health decisionmaking, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or veteran or military status of any person, ... to bar or to discharge the person from employment ... or to discriminate against the person in compensation or in terms, conditions, or privileges of employment.”

MDME contends that “Plaintiff conclusory claims that Defendant violated her employment in violation of FEHA. (FAC, ¶45.) Plaintiff does not set forth any additional facts other than conclusory stating that Defendant violated FEHA by terminating her employment. Such conclusory allegations are insufficient to state a cause of action for wrongful termination under FEHA. The FAC fails to state any facts to identify the nature of Plaintiff’s disability, Defendant’s knowledge of Plaintiff’s disability, or whether Plaintiff was capable of performing her job duties with or without accommodations. Moreover, the FAC fails to allege facts establishing a causal connection between Plaintiff’s purported disability and her termination. Plaintiff does not identify any facts supporting that Defendant’s decision to terminate her employment was in violation of FEHA. Instead, the FAC merely asserts legal conclusions that her termination violated FEHA without providing any factual basis.” (Dem., 14:3-14.)

Plaintiff's opposition

contends that "[t]he FAC alleges that Defendant regularly employed five or more persons and was subject to FEHA. (FAC, ¶¶ 19, 44.) It alleges that Plaintiff was pregnant, had previously taken maternity leave, requested accommodations and medical leave, and was terminated while approximately 6.5 months pregnant. (FAC, ¶¶ 9-16, 35-38, 45.) It alleges Defendant terminated Plaintiff in violation of the FEHA. (FAC, ¶ 45.) The supporting facts incorporated into the fourth cause of action provide the causal basis: prior maternity-leave demotion, delayed disclosure due to that experience, disclosure of pregnancy, changed supervisor behavior, and termination shortly thereafter. Defendant's disability-only framing ignores that Plaintiff pleads pregnancy/sex discrimination, pregnancy-related medical leave/accommodation rights, and retaliation, not merely disability discrimination." (Opp., 11:15-25.)

As the Court discussed above,

Plaintiff does not plead adequate facts to demonstrate discrimination and retaliation. Similarly, here, Plaintiff did not sufficiently allege ultimate facts that MDME's motivating factor in terminating Plaintiff was her protected status. Plaintiff's fourth cause of action relies on legal conclusions. Accordingly, Plaintiff did not allege that her termination was predicated on her protected status, so she fails to sufficiently allege wrongful termination in violation of FEHA. The Court sustains the demurrer to the fourth cause of action.

F.

Fifth

Cause of Action for Wrongful Termination in Violation of Public Policy

"The

elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 154.)

MDME

asserts that "Plaintiff's fifth cause of action for wrongful termination in violation of public policy is duplicative of the fourth cause of action, fails due to lack of sufficient factual support, and relies on conclusory allegations." (Dem., 14:20-22.) MDME also contends that "Plaintiff claims that

her termination violated public policy set forth in California Government Code §12940 et seq. However, the FAC is devoid of any facts setting forth that the termination was substantially motivated by a violation of public policy. The FAC merely conclusory [sic] states that ‘the actions of Defendants, and each of them, in terminating Plaintiff on the grounds alleged and described herein were wrongful and in contravention of the express public policy of the State of California, to wit, the policy set forth in California Government Code §12940 et seq., and the laws and regulations promulgated thereunder.’ (FAC, ¶51.) Plaintiff merely recites the elements of the cause of action without pleading facts to establish how public policy was implicated by Defendant’s decision to terminate Plaintiff’s employment. Such conclusory allegations are insufficient to state a cause of action for wrongful termination under public policy. The FAC fails to allege any facts establishing a causal nexus between Plaintiff’s termination and any purported violation of public policy.” (Dem., 15:4-16.)

Plaintiff

asserts that her FAC is sufficient because it “alleges an employment relationship beginning in or around 2016. (FAC, ¶ 7.) She alleges Defendant terminated her on September 2, 2025. (FAC, ¶ 15.) She alleges the termination violated California public policies codified in Government Code section 12940, including policies prohibiting discrimination, harassment, and retaliation based on sex, disability/perceived disability, pregnancy, and related protected statuses. (FAC, ¶ 51.) She also alleges resulting economic and emotional harm. (FAC, ¶¶ 52-55.) California law recognizes that FEHA can supply the public policy supporting a common-law wrongful discharge claim.” (Opp., 12:10-17.)

MDME,

in part, demurs to the fifth cause of action as duplicative. However, the Court notes that a duplicative cause of action is not a sole basis to sustain a demurrer. (See *R.L. v. Merced City School Dist.* (2025) 114 Cal.App.5th 89, 119

[“Redundancy[], is not enumerated as one of the statutory grounds on which a demurrer may be sustained.”].) Notwithstanding, Plaintiff’s fifth cause of action for wrongful termination in violation of public policy is predicated on FEHA and is deficient for the same reasons expressed in the fourth cause of action. Plaintiff’s FAC makes conclusory allegations regarding the circumstances of Plaintiff’s termination and fails to meet the pleading standard. Accordingly, the demurrer to the fifth cause of action is sustained, with leave to amend.

Motion to Strike

A. Legal Standard

A court may “[s]trikeout any irrelevant, false, or improper matter inserted in any pleading” or “[s]trike out all or any part of any pleading “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subds. (a)-(b).) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437.)

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. [Citations.] A pleading may be stricken only upon terms the court deems proper [citation], that is, terms that are just. [Citations.] It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader’s action.” (Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174-1175, internal quotations omitted.)

B. Discussion

Based on the Court’s decision to sustain the demurrer to Plaintiff’s FAC in its entirety, the motion to strike punitive damages is denied as moot.

Conclusion

Based on the foregoing, MDME’s demurrer to the first, second, third, fourth, and fifth causes of action is SUSTAINED with leave to amend. MDME’s motion to strike punitive damages is DENIED as MOOT.

Plaintiff is ordered to file and serve an amended complaint, if any, within 20 days of the date of this Order. If no amended complaint is filed within 20 days, the Court orders MDME

to file its answer within 30 days of the date of this Order.

MDME is ordered to give notice
of this Order.

DATED: August
12, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court